Report on Crimes Against Humanity Committed by Hong Kong Government Officials in Hong Kong and Several Other Places

SUMMARY OF INDIVIDUAL LIABILITY

Summary of John LEE Ka-chiu and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Basic Information

Name: John LEE Ka-chiu

Date of Birth: 7 December 1957

Place of Birth: British Hong Kong

2. Position of authority

Secretary for Security (2017 – 2021)

Chief Secretary for Administration (2021 – 2022)

Chief Executive (2022 –)

Member of Committee for Safeguarding National Security (2020 –)

Chairman of Committee for Safeguarding National Security (2022 –)

3. Offences Alleged

[3.1] John Lee Ka-chiu is alleged to bear individual criminal responsibility, under Article 25(3) and Article 28 of the Rome Statute, for the following crimes against humanity set out in Part 2 of the Factual Summary:

- Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e));
- Torture (Article 7(1)(f));
- Rape and other forms of sexual violence (Article 7(1)(g));
- Persecution against an identifiable group on political grounds (Article 7(1)(h)), including the programme of transnational repression described in Part 10 of the Factual Summary; and
- Other inhumane acts (Article 7(1)(k)).

[3.2] His responsibility is alleged to arise (i) under Article 25(3)(a)–(d), in that he committed, ordered, solicited, induced, or otherwise contributed to the commission of such acts; and (ii) under Article 28(b), in that, as a superior with effective authority and control over the subordinates who carried out such acts, he knew, or consciously disregarded information which clearly indicated, that they were committing or about to commit such acts, and failed to take all necessary and reasonable measures within his power to prevent or repress their commission or to submit the matter to the competent authorities. (See Part 2 of the Factual Summary)

4. Concrete Contribution

[4.1] John Lee Ka-chiu held senior positions of authority throughout the period relevant to this communication. As Secretary for Security (2017–2021) he exercised effective authority and control over the Hong Kong Police Force and the disciplined services; as Chief Secretary for Administration (2021–2022) and thereafter as Chief Executive (2022–) he exercised effective authority over the law-enforcement, prosecutorial and correctional organs of the Government; and, as Chairman of the Committee for Safeguarding National Security since 2022, he presides over the body vested with responsibility for national-security matters, the decisions of which are not amenable to judicial review. (*See Articles 12–15, EXHIBIT A7*)

[4.2] As Secretary for Security during the 2019 protests, John Lee Ka-chiu had effective authority and control over the Police Force whose conduct is described in Part 2 of the Factual Summary, including the disproportionate and potentially lethal use of force against civilians, the ill-treatment of persons detained at the San Uk Ling Holding Centre, and the sexual violence perpetrated against persons in custody. Notwithstanding the contemporaneous

public documentation of that conduct, and the withdrawal of the international experts appointed to advise the police-complaints body on account of its structural inability to conduct an effective inquiry, no genuine accountability was established for the officers under his command. (*See EXHIBITS C23, C26, C27, C28, C30 & C31*)

[4.3] As Chief Executive and Chairman of the Committee for Safeguarding National Security, he has presided over the apparatus responsible for the mass arrest, prolonged pre-trial detention and prosecution of political opponents under the HKNSL and the Safeguarding National Security Ordinance, as described in Part 2 of the Factual Summary. (*See Articles 12–15, EXHIBIT A7*)

[4.4] John Lee Ka-chiu further contributed directly and personally to the programme of transnational repression described in Part 10 of the Factual Summary. On 4 July 2023, the day after the issue of arrest warrants and bounties against eight persons resident overseas, several of whom were resident in States Parties, he publicly endorsed the measures, stated that the persons concerned would be "pursued… for life" "no matter where they flee to, however far", and confirmed that eligibility for the reward extended to "the relatives and friends of the wanted persons". (*See EXHIBITS F5, F6 & F7*) On 11 July 2023 he stated that the pursuit "will be lifelong", that the authorities would hold accountable "any person who provides them with financial assistance or other forms of assistance" and "those providing backing behind them", and called upon members of the public to treat the wanted persons as "rats crossing the street, to be shunned". (*See EXHIBITS F11 & F12*) Following the charging in the United Kingdom of an employee of the Hong Kong Economic and Trade Office in London with offences relating to the covert surveillance of exiled activists, he publicly defended the Office and demanded the protection of the employee's interests. (*See EXHIBIT F33*)

[4.5] John Lee Ka-chiu has also personally and publicly endorsed the outcome of national-security prosecutions of individual political opponents, in terms directed at the person of the defendant. On 9 February 2026, following the sentencing of Jimmy Lai, he stated that the sentence was “deeply gratifying to the public”. *(See EXHIBIT E11)* On 5 November 2026, immediately following the sentencing of Joshua Wong Chi-fung to ten years’ imprisonment, he described Wong, Nathan Law and their accomplices as among the

"primary culprits responsible for undermining Hong Kong's prosperity and stability". *(See EXHIBIT E30)*

5. Mens Rea

[5.1] John Lee Ka-chiu is alleged to have possessed the mental element required by Article 30 of the Rome Statute, in that he acted with intent and knowledge in relation to the conduct described and its consequences. There is a reasonable basis to believe that mental element is established, in particular, by his own public statements: he personally announced, endorsed, explained and defended the measures directed at the exiled pro-democracy community, in terms which demonstrate both his knowledge of those measures and his intent that they be carried out and produce their coercive effect. (*See EXHIBITS F5, F6, F7, F11, F12 & F33*) His knowledge of the wider attack is further supported by his seniority and his direct participation in the organs responsible for its direction – as Secretary for Security during the 2019 protests, and as Chief Executive and Chairman of the Committee for Safeguarding National Security thereafter – such that he knew, or must have known, of the widespread and systematic character of the conduct described in Part 2 of the Factual Summary. (*See Articles 12–15, EXHIBIT A7*)

Summary of Chris TANG Ping-keung and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Basic Information

Name: Chris TANG Ping-keung

Date of Birth: 5 July 1965

Place of Birth: British Hong Kong

2. Position of authority

Deputy Commissioner of Police (2018 – November 2019)

Commissioner of Police (November 2019 – 2021)

Secretary for Security (2021 –)

Member of Committee for Safeguarding National Security (2020 –)

3. Offences Alleged

[3.1] Chris Tang Ping-keung is alleged to bear individual criminal responsibility, under Article 25(3) and Article 28 of the Rome Statute, for the following crimes against humanity set out in Part 2 of the Factual Summary:

- Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e));
- Torture (Article 7(1)(f));
- Rape and other forms of sexual violence (Article 7(1)(g));
- Persecution against an identifiable group on political grounds (Article 7(1)(h)), including the programme of transnational repression described in Part 10 of the Factual Summary; and
- Other inhumane acts (Article 7(1)(k)).

[3.2] His responsibility is alleged to arise (i) under Article 25(3)(a)–(d), in that he committed, ordered, solicited, induced, or otherwise contributed to the commission of such acts – and, in respect of the "specified absconder" measures described in Part 10 of the Factual Summary, exercised in person the statutory power by which those measures were imposed; and (ii) under Article 28(b), in that, as a superior with effective authority and control over the subordinates who carried out such acts, he knew, or consciously disregarded information which clearly indicated, that they were committing or about to commit such acts, and failed to take all necessary and reasonable measures within his power to prevent or repress their commission or to submit the matter to the competent authorities. (See Part 2 of the Factual Summary)

4. Concrete Contribution

[4.1] Chris Tang Ping-keung held senior positions of authority throughout the period relevant to this communication. As Deputy Commissioner of Police (Operations) during 2019 he held operational command responsibilities within the Hong Kong Police Force; as Commissioner of Police (2019–2021) he exercised overall effective authority and control over that Force; and as Secretary for Security since 2021 he has exercised effective authority over the law-enforcement, immigration and correctional organs of the Government. He has been a member of the Committee for Safeguarding National Security since its establishment, first as Commissioner of Police and thereafter as Secretary for Security. (*See Articles 12–15, EXHIBIT A7*)

[4.2] As Commissioner of Police, Chris Tang Ping-keung had effective authority and control over the Police Force whose conduct is described in Part 2 of the Factual Summary, including the ill-treatment of persons detained at the San Uk Ling Holding Centre and the sexual violence perpetrated against persons in custody during and after the 2019 protests. His command responsibility is alleged to be engaged by the treatment of the complainant referred to as Ms X: on 12 May 2020, the Police Force under his command publicly announced that Ms X – who had alleged that she was raped by police officers while in custody – was herself to be pursued for "making a false statement", the coercive investigative measures previously directed at obtaining the forensic evidence of that alleged rape having thereby culminated in the pursuit of the complainant rather than the perpetrators. (See *EXHIBITS C23 & C25*)

Notwithstanding the contemporaneous public documentation of the conduct of the Force, and the withdrawal of the international experts appointed to advise the police-complaints body on account of its structural inability to conduct an effective inquiry, no genuine accountability was established for the officers under his command. (*See EXHIBITS C23, C26, C27, C28, C30 & C31*)

[4.3] As Secretary for Security, Chris Tang Ping-keung has exercised effective authority over the apparatus responsible for the mass arrest, prolonged pre-trial detention and prosecution of political opponents under the HKNSL and the Safeguarding National Security Ordinance, as described in Part 2 of the Factual Summary. (*See Articles 12–15, EXHIBIT A7)*

[4.4] Chris Tang Ping-keung further contributed directly and personally to the programme of transnational repression described in Part 10 of the Factual Summary. On 4 July 2023 he publicly stated of the eight persons then made the subject of arrest warrants and bounties that, having "run off" overseas, their conduct "must be severely punished"; that the authorities would "identify their contacts, associates, and the financiers behind them in Hong Kong or overseas"; and that "the law enforcement authorities of Hong Kong will devote their whole lives to bringing you back for arrest"; and he described Nathan Law as a "modern-day traitor of the Chinese nation". (*See EXHIBITS F8, F9 & F10*) He confirmed that the prohibition on providing financial support extended to the wanted persons' relatives, "it doesn't matter what background they have" (*See EXHIBIT F9*), and on later occasions stated that such persons would "remain a wanted person forever, unable to see the light like a rat crossing the street" and would "bring shame upon [their] family" (*See EXHIBIT F14*), that "however far, they will certainly be struck down" (*See EXHIBIT F15*), and that a wanted person overseas would "become a discarded pawn, or even a political bargaining chip", investigations into any person providing them with funds “whether in Hong Kong or elsewhere” (*See EXHIBIT F16*). When the United States Government stated that the authorities had harassed the family members of the wanted persons, he did not deny the allegation. (*See EXHIBIT F13*) His pursuit of persons who had sought protection abroad was, on his own account, of long standing. (*See EXHIBIT F17*)

[4.5] Most significantly, Chris Tang Ping-keung personally exercised the statutory power under sections 89(1) and 89(4) of the Safeguarding National Security Ordinance by which named individuals resident in States Parties were specified as "specified absconders" and

subjected to the cancellation of their passports, the suspension of their professional qualifications, and the prohibition – on pain of seven years' imprisonment – of the provision of any funds to them by any person. On 12 June 2024 he specified six such persons, stating that they were "hiding in the United Kingdom", and confirmed that any person providing them with funds would be criminally liable "no matter what platform it is", including subscribers resident in the United Kingdom holding British National (Overseas) status. (*See EXHIBITS F20 & F21*) On 4 August 2025 he specified a further sixteen persons, including Po-fun Chin. (*See EXHIBIT F22*)

5. Mens Rea

[5.1] Chris Tang Ping-keung is alleged to have possessed the mental element required by Article 30 of the Rome Statute, in that he acted with intent and knowledge in relation to the conduct described and its consequences. There is a reasonable basis to believe that mental element is established, in particular, by his own public statements and official acts: he personally announced, explained and promoted the measures directed at the exiled pro-democracy community, and personally exercised the statutory power by which the "specified absconder" measures were imposed, in terms and by acts which demonstrate both his knowledge of those measures and his intent that they be carried out and produce their coercive effect, including upon the family members of the persons targeted. (*See EXHIBITS F8, F9, F10, F13, F14, F15, F16, F17, F20, F21 & F22*) His knowledge of the wider attack, and of the conduct of the Force under his command, is further supported by his seniority and his direct participation in the organs responsible for the direction of that attack – as Commissioner of Police during and after the 2019 protests, and as Secretary for Security and a member of the Committee for Safeguarding National Security thereafter – such that he knew, or must have known, of the widespread and systematic character of the conduct described in Part 2 of the Factual Summary. (*See EXHIBITS C23 & C25; Article 12–15, EXHIBIT A7*)

Summary of Roberto Alexandre Vieira RIBEIRO and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Roberto Alexandre Vieira RIBEIRO (李義) was born in British Hong Kong on 20 March 1949. (*See EXHIBIT G1*) He has served as a judge of the Court of Final Appeal and sat on panels of that Court determining appeals in national-security and protest-related prosecutions.

[1.2] Having been born in British Hong Kong in 1949, RIBEIRO may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that RIBEIRO, through judgments of the Court of Final Appeal, contributed to the continued imprisonment of persons prosecuted for political expression, association and peaceful assembly.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that RIBEIRO contributed to the severe deprivation of the fundamental rights of persons identified by their political opinion, including the right to liberty pending trial, the right of peaceful assembly and the right to individualised sentencing.

[2.3] RIBEIRO's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Jimmy Lai's Bail Appeal

[3.1.1] Justice RIBEIRO was a member of the five-judge panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Chan NPJ and Stock NPJ) which, on 9 February 2021, allowed the prosecution's appeal against the grant of bail to Jimmy Lai, the founder of Apple Daily, who had been charged under the HKNSL. (*See EXHIBITS G2 and G4*)

[3.1.2] The Court held that Article 42(2) of the HKNSL creates a specific exception to the ordinary rules governing bail in Hong Kong: bail is not to be granted unless the judge has sufficient grounds for believing that the accused will not continue to commit acts endangering national security. The Court described this as a new and more stringent threshold requirement, to be applied as a matter of the court's own evaluation. (*See EXHIBIT G4*)

[3.1.3] The ruling established the framework under which bail has since been refused in the great majority of national-security prosecutions, contributing to the prolonged pre-trial detention described in Part 6 of the Factual Summary. Jimmy Lai remained in custody from December 2020 until his conviction in December 2025. (*See EXHIBITS G4 and E10*)

3.2 - The 18 August 2019 Unauthorised Assembly Appeal

[3.2.1] Justice RIBEIRO was a member of the panel of the Court of Final Appeal which, on 12 August 2024, unanimously dismissed the final appeals of seven pro-democracy figures, including Jimmy Lai, Martin Lee and Margaret Ng, against their convictions arising from a peaceful procession on 18 August 2019. He was co-author, with Chief Justice Andrew Cheung, of the principal judgment. *(See EXHIBIT G5)*

[3.2.2] The judgment held that the approach of "operational proportionality" adopted by the Supreme Court of the United Kingdom in DPP v Ziegler and in the Abortion Services (Safe Access Zones) (Northern Ireland) Bill reference should not be followed in Hong Kong, and rejected the argument that the arrest, prosecution, conviction and sentence of a peaceful demonstrator must each be separately justified as proportionate. *(See EXHIBIT G5)*

[3.2.3] The effect is that a person who takes part in a peaceful procession prohibited by the police may be convicted and punished without any individual assessment of whether criminal punishment is a proportionate response to that person's conduct.

3.3 - Chow Hang-tung's Incitement Appeal

[3.3.1] On 25 January 2024, the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Lam PJ and Gleeson NPJ) determined the prosecution's appeal in the case of Chow Hang-tung, who had been convicted of inciting others to take part in an unauthorised assembly by calling on the public, in 2021, to commemorate the victims of 4 June 1989. The High Court had quashed her conviction on appeal, on the basis that the lawfulness of the police prohibition of the vigil had not been established. *(See EXHIBIT G6)*

[3.3.2] Justice RIBEIRO delivered the leading judgment, with which Fok PJ and Gleeson NPJ agreed. He held that a defendant may in principle challenge the lawfulness of a police prohibition in criminal proceedings, but that the challenge failed on its merits because the prohibition was a proportionate measure for the protection of public health. The Court unanimously allowed the prosecution's appeal and restored the conviction. *(See EXHIBIT G6)*

[3.3.3] The judgment thereby upheld the criminal conviction of a person for calling on others to commemorate the victims of 4 June 1989, a commemoration that had been held peacefully in Hong Kong for three decades.

3.4 - Lui Sai-yu's Sentencing Appeal

[3.4.1] Justice RIBEIRO was a member of the panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Lam PJ and Chan NPJ) which, on 22 August 2023, unanimously dismissed the appeal of Lui Sai-yu, a university student, against a sentence of five years' imprisonment for inciting secession. Lui had pleaded guilty to posting pro-independence messages as an administrator of a public Telegram channel. *(See EXHIBITS G7 and G12)*

[3.4.2] The Court held that the sentencing bands in Article 21 of the HKNSL are mandatory; that the circumstances set out in Article 33 are the only grounds for imposing a sentence below the prescribed minimum; and that a guilty plea is not among them. A defendant who admits non-violent online expression therefore cannot receive the reduction ordinarily available under Hong Kong sentencing practice. *(See EXHIBIT G7)*

Summary of Joseph Paul FOK and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Joseph Paul FOK (霍兆剛) was born in British Hong Kong on 24 September 1962. *(See EXHIBIT G8)* He has served as a Permanent Judge of the Court of Final Appeal and sat on panels of that Court determining appeals in national-security and protest-related prosecutions.

[1.2] Having been born in British Hong Kong in 1962, FOK may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that FOK, through judgments of the Court of Final Appeal, contributed to the continued imprisonment of persons prosecuted for political expression, association and peaceful assembly.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that FOK contributed to the severe deprivation of the fundamental rights of persons identified by their political opinion, including the right to liberty pending trial, the right of peaceful assembly and the right to individualised sentencing.

[2.3] FOK's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Jimmy Lai's Bail Appeal

[3.1.1] Justice FOK was a member of the five-judge panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Chan NPJ and Stock NPJ) which, on 9 February 2021, allowed the prosecution's appeal against the grant of bail to Jimmy Lai, the founder of Apple Daily, who had been charged under the HKNSL. *(See EXHIBITS G2 and G4)*

[3.1.2] The Court held that Article 42(2) of the HKNSL creates a specific exception to the ordinary rules governing bail in Hong Kong: bail is not to be granted unless the judge has sufficient grounds for believing that the accused will not continue to commit acts endangering national security. The Court described this as a new and more stringent threshold requirement, to be applied as a matter of the court's own evaluation. *(See EXHIBIT G4)*

[3.1.3] The ruling established the framework under which bail has since been refused in the great majority of national-security prosecutions, contributing to the prolonged pre-trial detention described in Part 6 of the Factual Summary. Jimmy Lai remained in custody from December 2020 until his conviction in December 2025. *(See EXHIBITS G4 and E10)*

3.2 - The 18 August 2019 Unauthorised Assembly Appeal

[3.2.1] Justice FOK was a member of the panel of the Court of Final Appeal which, on 12 August 2024, unanimously dismissed the final appeals of seven pro-democracy figures, including Jimmy Lai, Martin Lee and Margaret Ng, against their convictions arising from a peaceful procession on 18 August 2019. He concurred in the principal judgment of Chief Justice Andrew Cheung and Justice Ribeiro. *(See EXHIBIT G5)*

[3.2.2] The judgment held that the approach of "operational proportionality" adopted by the Supreme Court of the United Kingdom in DPP v Ziegler and in the Abortion Services (Safe Access Zones) (Northern Ireland) Bill reference should not be followed in Hong Kong, and rejected the argument that the arrest, prosecution, conviction and sentence of a peaceful demonstrator must each be separately justified as proportionate. *(See EXHIBIT G5)*

[3.2.3] The effect is that a person who takes part in a peaceful procession prohibited by the police may be convicted and punished without any individual assessment of whether criminal punishment is a proportionate response to that person's conduct.

3.3 - Chow Hang-tung's Incitement Appeal

[3.3.1] On 25 January 2024, the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Lam PJ and Gleeson NPJ) determined the prosecution's appeal in the case of Chow Hang-tung, who had been convicted of inciting others to take part in an unauthorised assembly by calling on the public, in 2021, to commemorate the victims of 4 June 1989. The High Court had quashed her conviction on appeal, on the basis that the lawfulness of the police prohibition of the vigil had not been established. *(See EXHIBIT G6)*

[3.3.2] Justice FOK agreed with the leading judgment of Justice Ribeiro, which held that a defendant may in principle challenge the lawfulness of a police prohibition in criminal proceedings, but that the challenge failed on its merits because the prohibition was a proportionate measure for the protection of public health. The Court unanimously allowed the prosecution's appeal and restored the conviction. *(See EXHIBIT G6)*

[3.3.3] The judgment thereby upheld the criminal conviction of a person for calling on others to commemorate the victims of 4 June 1989, a commemoration that had been held peacefully in Hong Kong for three decades.

3.4 - Lui Sai-yu's Sentencing Appeal

[3.4.1] Justice FOK was a member of the panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Lam PJ and Chan NPJ) which, on 22 August 2023, unanimously dismissed the appeal of Lui Sai-yu, a university student, against a sentence of five years' imprisonment for inciting secession. Lui had pleaded guilty to posting pro-independence messages as an administrator of a public Telegram channel. *(See EXHIBITS G7 and G12)*

[3.4.2] The Court held that the sentencing bands in Article 21 of the HKNSL are mandatory; that the circumstances set out in Article 33 are the only grounds for imposing a sentence below the prescribed minimum; and that a guilty plea is not among them. A defendant who admits non-violent online expression therefore cannot receive the reduction ordinarily available under Hong Kong sentencing practice. *(See EXHIBIT G7)*

Summary of Frank STOCK and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Frank STOCK (司徒敬) was born in 1945 in Southern Rhodesia, then a self-governing British colony. (See EXHIBIT G9) He served as Vice-President of the Court of Appeal and subsequently as a Non-Permanent Judge of the Court of Final Appeal.

[1.2] Having been born in a British colony, STOCK is likely to hold British nationality. Not being of Chinese descent, he is unlikely to hold the nationality of the People's Republic of China, which does not recognise dual nationality. *(See EXHIBIT G10)* If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that STOCK, through a judgment of the Court of Final Appeal, contributed to the prolonged pre-trial imprisonment of persons prosecuted under the HKNSL.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that STOCK contributed to the severe deprivation of the right to liberty pending trial of persons identified by their political opinion.

[2.3] STOCK's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Jimmy Lai's Bail Appeal

[3.1.1] Justice STOCK was a member of the five-judge panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Chan NPJ and Stock NPJ) which, on 9 February 2021, allowed the prosecution's appeal against the grant of bail to Jimmy Lai, the founder of Apple Daily, who had been charged under the HKNSL. *(See EXHIBITS G2 and G4)*

[3.1.2] The Court held that Article 42(2) of the HKNSL creates a specific exception to the ordinary rules governing bail in Hong Kong: bail is not to be granted unless the judge has sufficient grounds for believing that the accused will not continue to commit acts endangering national security. The Court described this as a new and more stringent threshold requirement, to be applied as a matter of the court's own evaluation. *(See EXHIBIT G4)*

[3.1.3] The ruling established the framework under which bail has since been refused in the great majority of national-security prosecutions, contributing to the prolonged pre-trial detention described in Part 6 of the Factual Summary. Jimmy Lai remained in custody from December 2020 until his conviction in December 2025. *(See EXHIBITS G4 and E10)*

Summary of Patrick CHAN Siu-oi and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Patrick CHAN Siu-oi (陳兆愷) was born in British Hong Kong on 21 October 1948. *(See EXHIBIT G1)* He served as a Permanent Judge and subsequently as a Non-Permanent Judge of the Court of Final Appeal.

[1.2] Having been born in British Hong Kong in 1948, CHAN may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that CHAN, through judgments of the Court of Final Appeal, contributed to the continued imprisonment of persons prosecuted for political expression, association and peaceful assembly.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that CHAN contributed to the severe deprivation of the fundamental rights of persons identified by their political opinion, including the right to liberty pending trial, the right of peaceful assembly and the right to individualised sentencing.

[2.3] CHAN's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Jimmy Lai's Bail Appeal

[3.1.1] Justice CHAN was a member of the five-judge panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Chan NPJ and Stock NPJ) which, on 9 February 2021, allowed the prosecution's appeal against the grant of bail to Jimmy Lai, the founder of Apple Daily, who had been charged under the HKNSL. *(See EXHIBITS G2 and G4)*

[3.1.2] The Court held that Article 42(2) of the HKNSL creates a specific exception to the ordinary rules governing bail in Hong Kong: bail is not to be granted unless the judge has sufficient grounds for believing that the accused will not continue to commit acts endangering national security. The Court described this as a new and more stringent threshold requirement, to be applied as a matter of the court's own evaluation. *(See EXHIBIT G4)*

[3.1.3] The ruling established the framework under which bail has since been refused in the great majority of national-security prosecutions, contributing to the prolonged pre-trial detention described in Part 6 of the Factual Summary. Jimmy Lai remained in custody from December 2020 until his conviction in December 2025. *(See EXHIBITS G4 and E10)*

3.2 - Lui Sai-yu's Sentencing Appeal

[3.2.1] Justice CHAN was a member of the panel of the Court of Final Appeal (Cheung CJ, Ribeiro PJ, Fok PJ, Lam PJ and Chan NPJ) which, on 22 August 2023, unanimously dismissed the appeal of Lui Sai-yu, a university student, against a sentence of five years' imprisonment for inciting secession. Lui had pleaded guilty to posting pro-independence messages as an administrator of a public Telegram channel. *(See EXHIBITS G7 and G12)*

[3.2.2] The Court held that the sentencing bands in Article 21 of the HKNSL are mandatory; that the circumstances set out in Article 33 are the only grounds for imposing a sentence below the prescribed minimum; and that a guilty plea is not among them. A defendant who admits non-violent online expression therefore cannot receive the reduction ordinarily available under Hong Kong sentencing practice. *(See EXHIBIT G7)*

Summary of Amanda Jane WOODCOCK and Her Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Amanda Jane WOODCOCK (胡雅文) was born in British Hong Kong in 1966. *(See EXHIBIT G11)* She is a judge of the District Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1966, WOODCOCK may hold British National (Overseas) status or another form of British nationality. If she is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by her. Her nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that WOODCOCK contributed to the imprisonment of persons for political expression and for organising and taking part in peaceful assemblies.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that WOODCOCK contributed to the severe deprivation of the rights of peaceful assembly and freedom of expression of persons identified by their political opinion.

[2.3] WOODCOCK's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Lui Sai-yu's Sentencing

[3.1.1] On 29 April 2022, Judge WOODCOCK sentenced Lui Sai-yu, a university student, to five years' imprisonment for inciting secession under the HKNSL, following his guilty plea to posting pro-independence messages as an administrator of a public Telegram channel. The reduction ordinarily available for a guilty plea was not permitted to take the sentence below the five-year minimum. *(See EXHIBIT G12)*

[3.1.2] The sentence was upheld by the Court of Final Appeal on 22 August 2023. *(See EXHIBIT G7)*

3.2 - The 18 August 2019 Unauthorised Assembly Trial

[3.2.1] Judge WOODCOCK presided over the trial arising from a peaceful procession from Victoria Park on 18 August 2019, which organisers estimated drew 1.7 million people. On 1 April 2021 she convicted the seven defendants who had contested the charges, Jimmy Lai, Martin Lee, Margaret Ng, Lee Cheuk-yan, Albert Ho, Leung Kwok-hung and Cyd Ho, of organising and knowingly taking part in an unauthorised assembly, rejecting defence arguments founded on the constitutional right of peaceful assembly. *(See EXHIBIT G5)*

3.3 - The 1 October 2019 Unauthorised Assembly Sentencing

[3.3.1] On 28 May 2021, Judge WOODCOCK sentenced ten pro-democracy figures, including Figo Chan, Lee Cheuk-yan, Leung Kwok-hung, Albert Ho and Jimmy Lai, for their part in an unauthorised assembly on 1 October 2019, imposing terms of up to 18 months' imprisonment. *(See EXHIBIT G13)*

[3.3.2] She stated that the case called for "deterrent and punitive" sentences, and described the defendants' calls for a peaceful demonstration as "naive and unrealistic", reasoning that "there will be those who seek to instigate violence from volatile situations, therein lies the risk that cannot be ignored". *(See EXHIBIT G13)*

[3.3.3] The reasoning treats the organisers of a peaceful assembly as culpable for the possibility of violence by others, rather than for any violence that they committed or intended.

Summary of KWOK Wai-kin and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] KWOK Wai-kin (郭偉健) was born in British Hong Kong in 1959. *(See EXHIBIT G11)* He is a judge of the District Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1959, KWOK may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that KWOK contributed to the imprisonment of persons for publication, journalism and peaceful political advocacy.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that KWOK contributed to the severe deprivation of the freedom of expression and of the press of persons identified by their political opinion.

[2.3] KWOK's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Speech Therapists' Children's Books

[3.1.1] On 7 September 2022, Judge KWOK convicted five speech therapists of conspiracy to publish seditious publications in respect of three illustrated children's books which used an allegory of sheep defending their village from wolves to describe the events of the 2019 protest movement. On 10 September 2022 he sentenced each of them to 19 months' imprisonment. *(See EXHIBIT E18)*

[3.1.2] He inferred seditious intention from the political meaning of the allegory, reasoning that readers would be led to regard the Government of the People's Republic of China as a wicked wolf. *(See EXHIBIT E18)* The judgment extends criminal liability to political criticism conveyed through allegory in literature for children.

3.2 - The "Student Politicism" Case

[3.2.1] On 22 October 2022, Judge KWOK sentenced four members of the student group "Student Politicism", who had pleaded guilty to conspiracy to incite subversion under the HKNSL, to terms of up to 36 months' imprisonment, with the youngest defendant ordered to a training centre. Their conduct, between October 2020 and June 2021, consisted of operating street booths, chanting political slogans and promoting their political views. *(See EXHIBIT G14)*

[3.2.2] He treated the popularity of the group's street booths as an aggravating factor and rejected the submission that Hong Kong society had returned to peace. *(See EXHIBIT G14)* Effective peaceful advocacy was thereby treated as a reason for heavier punishment.

3.3 - The Stand News Case

[3.3.1] On 29 August 2024, Judge KWOK convicted Chung Pui-kuen and Patrick Lam, former editors of the online news outlet Stand News, of conspiracy to publish seditious publications, finding 11 of 17 articles, including interviews with and commentaries by pro-democracy figures, to be seditious. *(See EXHIBIT E17)*

[3.3.2] He held that the prosecution was not required to prove an intention to incite violence, and that recklessness as to the seditious effect of a publication was sufficient. *(See EXHIBITS E17 and G15)*

[3.3.3] On 26 September 2024 he sentenced Chung Pui-kuen to 21 months' imprisonment and Patrick Lam to 11 months, reduced from 14 months on account of his medical condition. *(See EXHIBIT G15)* The standard he applied exposes editors to imprisonment for publishing political commentary and interviews.

Summary of CHAN Kwong-chi, Stanley and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] CHAN Kwong-chi, Stanley (陳廣池) was born in British Hong Kong in 1961. *(See EXHIBIT G16)* He is a judge of the District Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1961, CHAN may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that CHAN contributed to the imprisonment of persons for political speech and slogans.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that CHAN contributed to the severe deprivation of the freedom of expression of persons identified by their political opinion.

[2.3] CHAN's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Tam Tak-chi Sedition Case

[3.1.1] In a ruling of 26 April 2021 in the prosecution of Tam Tak-chi, a former radio presenter and opposition activist, Judge CHAN held that an intention to incite violence is not an essential element of the offence of uttering seditious words. *(See EXHIBIT G18)*

[3.1.2] On 2 March 2022 he convicted Tam of 11 of 14 charges, including seven counts of uttering seditious words, and on 20 April 2022 sentenced him to a total of 40 months' imprisonment. *(See EXHIBIT G17)*

[3.1.3] The ruling permits imprisonment for words alone, without any link to incitement to violence or public disorder, contrary to the requirement under international human-rights law that restrictions on expression be narrowly tailored and proportionate.

3.2 - The Ma Chun-man Incitement Case

[3.2.1] On 25 October 2021, Judge CHAN convicted Ma Chun-man of inciting secession under the HKNSL for chanting slogans and making speeches advocating Hong Kong independence on at least 20 occasions between August and November 2020, without any advocacy of violence. On 11 November 2021 he sentenced Ma to five years and nine months' imprisonment. *(See EXHIBITS G19 and G20)*

Summary of CHAN Hing-wai, Andrew and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] CHAN Hing-wai, Andrew (陳慶偉) was born in British Hong Kong in 1958. *(See EXHIBIT G21)* He is a judge of the Court of First Instance of the High Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1958, CHAN may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that CHAN contributed to the imprisonment of opposition politicians and activists for participation in an electoral process.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that CHAN contributed to the severe deprivation of the rights of political participation, expression and association of persons identified by their political opinion.

[2.3] CHAN's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Hong Kong 47 Subversion Case

[3.1.1] Judge CHAN was one of the three designated national-security judges (Andrew Chan Hing-wai, Alex Lee Wan-tang and Johnny Chan Jong-herng) who tried the prosecution of 47 pro-democracy politicians and activists arising from an unofficial primary election held in July 2020, in which the opposition sought to select candidates for the Legislative Council elections. *(See EXHIBIT E12)*

[3.1.2] The prosecution case was that the defendants, if elected as a majority, intended to use the Legislative Council's constitutional power to veto the Government's budget in order ultimately to compel the resignation of the Chief Executive, and that this plan amounted to a conspiracy to commit subversion. On 30 May 2024 the panel accepted that case and convicted 14 of the 16 defendants who had contested the charge. *(See EXHIBIT E12)*

[3.1.3] On 19 November 2024 the panel sentenced all 45 convicted defendants to terms ranging from four years and two months to ten years' imprisonment. *(See EXHIBIT E3)*

[3.1.4] It is alleged that, through these judgments, Judge CHAN contributed to the imprisonment of opposition politicians for organising and participating in an electoral process and for proposing to exercise powers conferred on legislators by the Basic Law.

Summary of LEE Wan-tang, Alex and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] LEE Wan-tang, Alex (李運騰) was born in British Hong Kong in 1966. *(See EXHIBIT G30)* He is a judge of the Court of First Instance of the High Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1966, LEE may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that LEE contributed to the imprisonment of opposition politicians, a newspaper proprietor and the leaders of a commemorative civil-society organisation for political participation, journalism, advocacy and commemoration.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that LEE contributed to the severe deprivation of the fundamental rights of persons identified by their political opinion, and to the denial of an effective remedy to persons seeking accountability for violence against protesters.

[2.3] LEE's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Hong Kong 47 Subversion Case

[3.1.1] Judge LEE was one of the three designated national-security judges (Andrew Chan Hing-wai, Alex Lee Wan-tang and Johnny Chan Jong-herng) who tried the prosecution of 47 pro-democracy politicians and activists arising from an unofficial primary election held in July 2020, in which the opposition sought to select candidates for the Legislative Council elections. *(See EXHIBIT E12)*

[3.1.2] The prosecution case was that the defendants, if elected as a majority, intended to use the Legislative Council's constitutional power to veto the Government's budget in order ultimately to compel the resignation of the Chief Executive, and that this plan amounted to a conspiracy to commit subversion. On 30 May 2024 the panel accepted that case and convicted 14 of the 16 defendants who had contested the charge. *(See EXHIBIT E12)*

[3.1.3] On 19 November 2024 the panel sentenced all 45 convicted defendants to terms ranging from four years and two months to ten years' imprisonment. *(See EXHIBIT E3)*

[3.1.4] It is alleged that, through these judgments, Judge LEE contributed to the imprisonment of opposition politicians for organising and participating in an electoral process and for proposing to exercise powers conferred on legislators by the Basic Law.

3.2 - Jimmy Lai's National-Security Trial

[3.2.1] Judge LEE was one of the three designated national-security judges (Esther Toh Lye-ping, Susana Maria D'Almada Remedios and Alex Lee Wan-tang) who tried Jimmy Lai, the founder of Apple Daily. On 15 December 2025 the panel convicted him of conspiracy to publish seditious publications and two counts of conspiracy to collude with foreign forces. *(See EXHIBIT E10)*

[3.2.2] The panel treated Lai's publications and his meetings with foreign politicians, at which he called for international pressure concerning human rights in Hong Kong, as conduct capable of constituting collusion with foreign forces. It stated that Lai was convicted not for holding political opinions but for putting "his thoughts into action". *(See EXHIBIT E10)*

[3.2.3] At the mitigation hearing, when the defence raised Lai's loss of weight in custody, Judge LEE remarked that it "could be a good thing or a bad thing — some people would very much like to lose weight". *(See EXHIBIT E8)*

[3.2.4] On 9 February 2026 the panel sentenced Lai, then aged 78, to 20 years' imprisonment, after more than five years in custody, much of it in solitary confinement. *(See EXHIBITS E7 and E11)*

[3.2.5] It is alleged that, through these judgments, Judge LEE contributed to the imprisonment of a newspaper proprietor for journalism and for political advocacy directed at foreign governments.

3.3 - Judicial Review of the Termination of Private Prosecutions

[3.3.1] Former legislator Ted Hui Chi-fung brought private prosecutions in respect of two incidents during the 2019 protests: the shooting of an unarmed protester by a police officer at close range on 11 November 2019, and a taxi allegedly driven into a crowd of protesters on 6 October 2019. Magistrates found sufficient grounds to issue summonses. *(See EXHIBITS C20, C21 and C22)*

[3.3.2] On 24 August 2020 the Secretary for Justice took over and withdrew both prosecutions. On 7 May 2021, Judge LEE refused Hui leave to apply for judicial review of those decisions and ordered him to pay costs on an indemnity basis. *(See EXHIBIT C22)*

[3.3.3] The effect of the ruling was that no criminal proceedings were brought in respect of either incident. It forms part of the pattern, described in Part 3 of the Factual Summary, by which mechanisms nominally available for accountability for violence against protesters did not operate.

3.4 - The Hong Kong Alliance Subversion Case

[3.4.1] Judge LEE was one of the three designated national-security judges (Alex Lee Wan-tang, Johnny Chan Jong-herng and Anna Lai Yuen-kee) who, on 21 August 2026,

convicted Lee Cheuk-yan and Chow Hang-tung, former leaders of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China, of incitement to subvert State power, and who on 11 September 2026 sentenced Chow Hang-tung to seven years and three months' imprisonment, Lee Cheuk-yan to seven years, and Albert Ho, who had pleaded guilty, to five years and two months. *(See EXHIBITS E27 and E28)*

[3.4.2] For more than three decades, the Alliance's principal public activity had been organising the annual commemoration in Victoria Park of those killed in Beijing on 4 June 1989. *(See EXHIBIT E13)* The panel accepted that the case involved no violence or threat of violence and that no specific means of implementation or timetable had been proposed. It nonetheless held the offence to be of a serious nature, by reference to the Alliance's programme to end one-party rule, disseminated through its organised activities, its Tiananmen commemorations and its social-media presence, and to the defendants' refusal to abandon that position after the HKNSL came into force. *(See EXHIBITS E27 and E28)*

[3.4.3] The defendants had already spent more than 1,500 days in pre-trial detention. *(See EXHIBIT E14)* It is alleged that, through these judgments, Judge LEE contributed to the imprisonment, for up to seven years and three months, of the leaders of an organisation whose principal public function was the peaceful commemoration of a historical atrocity.

Summary of CHAN Jong-herng, Johnny and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] CHAN Jong-herng, Johnny (陳仲衡) was born in British Hong Kong in 1964. *(See EXHIBIT G22)* He is a judge of the Court of First Instance of the High Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1964, CHAN may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that CHAN contributed to the imprisonment of opposition politicians and of the leaders of a commemorative civil-society organisation for political participation, advocacy and commemoration.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that CHAN contributed to the severe deprivation of the rights of political participation, expression and association of persons identified by their political opinion.

[2.3] CHAN's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Hong Kong 47 Subversion Case

[3.1.1] Judge CHAN was one of the three designated national-security judges (Andrew Chan Hing-wai, Alex Lee Wan-tang and Johnny Chan Jong-herng) who tried the prosecution of 47 pro-democracy politicians and activists arising from an unofficial primary election held in July 2020, in which the opposition sought to select candidates for the Legislative Council elections. *(See EXHIBIT E12)*

[3.1.2] The prosecution case was that the defendants, if elected as a majority, intended to use the Legislative Council's constitutional power to veto the Government's budget in order ultimately to compel the resignation of the Chief Executive, and that this plan amounted to a conspiracy to commit subversion. On 30 May 2024 the panel accepted that case and convicted 14 of the 16 defendants who had contested the charge. *(See EXHIBIT E12)*

[3.1.3] On 19 November 2024 the panel sentenced all 45 convicted defendants to terms ranging from four years and two months to ten years' imprisonment. *(See EXHIBIT E3)*

[3.1.4] It is alleged that, through these judgments, Judge CHAN contributed to the imprisonment of opposition politicians for organising and participating in an electoral process and for proposing to exercise powers conferred on legislators by the Basic Law.

3.2 - The Hong Kong Alliance Subversion Case

[3.2.1] Judge CHAN was one of the three designated national-security judges (Alex Lee Wan-tang, Johnny Chan Jong-herng and Anna Lai Yuen-kee) who, on 21 August 2026, convicted Lee Cheuk-yan and Chow Hang-tung, former leaders of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China, of incitement to subvert State power, and who on 11 September 2026 sentenced Chow Hang-tung to seven years and three months' imprisonment, Lee Cheuk-yan to seven years, and Albert Ho, who had pleaded guilty, to five years and two months. *(See EXHIBITS E27 and E28)*

[3.2.2] For more than three decades, the Alliance's principal public activity had been organising the annual commemoration in Victoria Park of those killed in Beijing on 4 June

1989. *(See EXHIBIT E13)* The panel accepted that the case involved no violence or threat of violence and that no specific means of implementation or timetable had been proposed. It nonetheless held the offence to be of a serious nature, by reference to the Alliance's programme to end one-party rule, disseminated through its organised activities, its Tiananmen commemorations and its social-media presence, and to the defendants' refusal to abandon that position after the HKNSL came into force. *(See EXHIBITS E27 and E28)*

[3.2.3] The defendants had already spent more than 1,500 days in pre-trial detention. *(See EXHIBIT E14)* It is alleged that, through these judgments, Judge CHAN contributed to the imprisonment, for up to seven years and three months, of the leaders of an organisation whose principal public function was the peaceful commemoration of a historical atrocity.

Summary of LAI Yuen-kee, Anna and Her Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] LAI Yuen-kee, Anna (黎婉姬) was born in British Hong Kong in 1958. *(See EXHIBIT G22)* She was appointed a judge of the Court of First Instance of the High Court with effect from 26 November 2021, and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1958, LAI may hold British National (Overseas) status or another form of British nationality. If she is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by her. Her nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that LAI contributed to the imprisonment of the leaders of a civil-society organisation for non-violent political advocacy and commemoration.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that LAI contributed to the severe deprivation of the fundamental rights of persons identified by their political opinion and association, through the conviction and lengthy imprisonment of the leaders of an organisation devoted to the commemoration of the victims of 4 June 1989.

[2.3] LAI's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Hong Kong Alliance Subversion Case

[3.1.1] Judge LAI was one of the three designated national-security judges (Alex Lee Wan-tang, Johnny Chan Jong-herng and Anna Lai Yuen-kee) who, on 21 August 2026, convicted Lee Cheuk-yan and Chow Hang-tung, former leaders of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China, of incitement to subvert State power, and who on 11 September 2026 sentenced Chow Hang-tung to seven years and three months' imprisonment, Lee Cheuk-yan to seven years, and Albert Ho, who had pleaded guilty, to five years and two months. *(See EXHIBITS E27 and E28)*

[3.1.2] For more than three decades, the Alliance's principal public activity had been organising the annual commemoration in Victoria Park of those killed in Beijing on 4 June 1989. *(See EXHIBIT E13)* The panel accepted that the case involved no violence or threat of violence and that no specific means of implementation or timetable had been proposed. It nonetheless held the offence to be of a serious nature, by reference to the Alliance's programme to end one-party rule, disseminated through its organised activities, its Tiananmen commemorations and its social-media presence, and to the defendants' refusal to abandon that position after the HKNSL came into force. *(See EXHIBITS E27 and E28)*

[3.1.3] The defendants had already spent more than 1,500 days in pre-trial detention. *(See EXHIBIT E14)* It is alleged that, through these judgments, Judge LAI contributed to the imprisonment, for up to seven years and three months, of the leaders of an organisation whose principal public function was the peaceful commemoration of a historical atrocity.

Summary of LAW Tak-chuen, Peter and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] LAW Tak-chuen, Peter (羅德泉) was born in British Hong Kong in 1958. *(See EXHIBIT G23)* He is a Principal Magistrate and has sat in national-security proceedings as a magistrate designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1958, LAW may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that LAW contributed to the imprisonment of persons for political commemoration, planned symbolic protest and the activities of a civil-society organisation.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that LAW contributed to the severe deprivation of the freedoms of expression and association of persons identified by their political opinion.

[2.3] LAW's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Hong Kong Alliance Information-Notice Case

[3.1.1] On 4 March 2023, Principal Magistrate LAW convicted Chow Hang-tung, Tang Ngok-kwan and Tsui Hon-kwong, members of the Hong Kong Alliance in Support of Patriotic Democratic Movements of China, of failing to comply with a police notice issued under the implementation rules for Article 43 of the HKNSL requiring the Alliance to provide information about its operations, members and finances. He ruled that the prosecution was not required to prove that the Alliance was in fact a "foreign agent". *(See EXHIBIT E16)*

[3.1.2] On 11 March 2023 he sentenced each defendant to four and a half months' imprisonment, stating that the sentence must reflect the law's determination to safeguard national security, send a clear message to the public, and be "punitive and sufficiently deterrent". *(See EXHIBIT E16)*

3.2 - The Zeng Yuxuan Case

[3.2.1] On 12 September 2023, Principal Magistrate LAW sentenced Zeng Yuxuan, a law student from mainland China, to six months' imprisonment for attempting to do an act with seditious intention, namely planning to display a banner depicting the "Pillar of Shame" in commemoration of the victims of 4 June 1989. The planned display never took place. Upon completing her sentence she was deported to mainland China. *(See EXHIBIT E22)*

3.3 - The Koo Sze-yiu Case

[3.3.1] On 12 July 2022, Principal Magistrate LAW convicted Koo Sze-yiu, a 75-year-old pro-democracy and labour activist suffering from terminal cancer, of attempting to commit a seditious act, and sentenced him to nine months' imprisonment. Koo had planned to carry a mock coffin bearing political slogans to the Liaison Office of the Central People's Government on 4 February 2022, the opening day of the Beijing Winter Olympics. The planned protest never took place. *(See EXHIBIT E23)*

Summary of SO Wai-tak, Victor and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] SO Wai-tak, Victor (蘇惠德) was born in British Hong Kong in 1958. *(See EXHIBIT G23)* He is the Chief Magistrate and has sat in national-security proceedings as a magistrate designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1958, SO may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that SO contributed to the imprisonment of persons for slogans, online posts and other non-violent expression.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that SO contributed to the severe deprivation of the freedom of expression of persons identified by their political opinion.

[2.3] SO's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Luk Ting-fung Case

[3.1.1] On 25 October 2022, Chief Magistrate SO sentenced Luk Ting-fung, a former civil servant, to six months' imprisonment for publishing seditious publications, consisting of posts and comments on the LIHKG online forum. *(See EXHIBIT G24)*

3.2 - The Yuen Ching-ting Case

[3.2.1] On 3 November 2023, Chief Magistrate SO sentenced Yuen Ching-ting, a 23-year-old student, to two months' imprisonment for publishing seditious posts on Facebook and Instagram between 2018 and 2023, most of them made while she was studying in Japan. She was arrested on her return to Hong Kong. *(See EXHIBIT E19)*

[3.2.2] The court accepted that the posts took the form of slogans without radical language and that her accounts had a limited audience, and treated her failure to delete, after the HKNSL came into force, posts made before it as part of the offence. *(See EXHIBIT E19)*

3.3 - The Chu Kai-pong Case

[3.3.1] On 19 September 2024, Chief Magistrate SO sentenced Chu Kai-pong to 14 months' imprisonment, the first sentence for sedition under the Safeguarding National Security Ordinance, for wearing on 12 June 2024 a T-shirt bearing the slogan "Liberate Hong Kong, revolution of our times" and a mask bearing the slogan "five demands, not one less". *(See EXHIBIT G25)*

3.4 - The Chung Man-kit Case

[3.4.1] On 19 September 2024, Chief Magistrate SO sentenced Chung Man-kit to ten months' imprisonment, following his guilty plea, for writing pro-independence and protest slogans on the backs of bus seats. *(See EXHIBIT G26)*

3.5 - The Au Kin-wai Case

[3.5.1] On 20 September 2024, Chief Magistrate SO sentenced Au Kin-wai, aged 58, to 14 months' imprisonment, following his guilty plea, for social-media posts criticising the Chinese Communist Party and the Hong Kong authorities, emphasising deterrence in his reasons. *(See EXHIBIT G27)*

3.6 - The Li Chun-kit Case

[3.6.1] In May 2025, Chief Magistrate SO sentenced Li Chun-kit, a former bus technician, to one year's imprisonment for Facebook posts found to incite hatred against the police, the judiciary and the Government, describing them as "radical statements" unsupported by objective facts. *(See EXHIBIT G28)*

Summary of Susana Maria D'ALMADA REMEDIOS and Her Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] Susana Maria D'ALMADA REMEDIOS (李素蘭) was born in British Hong Kong in 1964. *(See EXHIBIT G29)* She is a judge of the Court of First Instance of the High Court and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1964, D'ALMADA REMEDIOS may hold British National (Overseas) status or another form of British nationality. If she is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by her. Her nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that D'ALMADA REMEDIOS contributed to the imprisonment of a newspaper proprietor for journalism and political advocacy.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that D'ALMADA REMEDIOS contributed to the severe deprivation of the freedoms of expression and of the press of persons identified by their political opinion.

[2.3] D'ALMADA REMEDIOS's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - Jimmy Lai's National-Security Trial

[3.1.1] Judge D'ALMADA REMEDIOS was one of the three designated national-security judges (Esther Toh Lye-ping, Susana Maria D'Almada Remedios and Alex Lee Wan-tang) who tried Jimmy Lai, the founder of Apple Daily. On 15 December 2025 the panel convicted him of conspiracy to publish seditious publications and two counts of conspiracy to collude with foreign forces. *(See EXHIBIT E10)*

[3.1.2] The panel treated Lai's publications and his meetings with foreign politicians, at which he called for international pressure concerning human rights in Hong Kong, as conduct capable of constituting collusion with foreign forces. It stated that Lai was convicted not for holding political opinions but for putting "his thoughts into action". *(See EXHIBIT E10)*

[3.1.3] On 9 February 2026 the panel sentenced Lai, then aged 78, to 20 years' imprisonment, after more than five years in custody, much of it in solitary confinement. *(See EXHIBITS E7 and E11)*

[3.1.4] It is alleged that, through these judgments, Judge D'ALMADA REMEDIOS contributed to the imprisonment of a newspaper proprietor for journalism and for political advocacy directed at foreign governments.

Summary of TAM Yiu-ho, William and His Suspected Involvement in Crimes Against Humanity in Hong Kong

1. Personal Background

[1.1] TAM Yiu-ho, William (譚耀豪) was born in British Hong Kong in 1967. *(See EXHIBIT G31)* He was appointed a judge of the Court of First Instance of the High Court with effect from 2 September 2024, and has sat in national-security proceedings as a judge designated by the Chief Executive under Article 44 of the HKNSL.

[1.2] Having been born in British Hong Kong in 1967, TAM may hold British National (Overseas) status or another form of British nationality. If he is a national of the United Kingdom, a State Party to the Rome Statute, the International Criminal Court would have jurisdiction under Article 12(2)(b) over Rome Statute crimes allegedly committed by him. His nationality is a matter requiring verification, which the Office of the Prosecutor may seek from the United Kingdom under Articles 54(3)(c) and 93(1).

2. Offences Alleged

[2.1] Imprisonment or other severe deprivation of physical liberty (Article 7(1)(e)).

There is a reasonable basis to believe that TAM contributed to the imprisonment, for a further ten years, of a political activist for social-media posts and published commentary in support of advocacy conducted abroad.

[2.2] Persecution against an identifiable group on political grounds (Article 7(1)(h)).

There is a reasonable basis to believe that TAM contributed to the severe deprivation of the freedom of expression of persons identified by their political opinion.

[2.3] TAM's responsibility is alleged to arise under Article 25(3)(c) or, alternatively, Article 25(3)(d) of the Rome Statute, as part of the widespread or systematic attack described in Part 2 of the Factual Summary.

3. Case Brief

3.1 - The Joshua Wong Collusion Case

[3.1.1] On 5 November 2026, Judge TAM sentenced Joshua Wong Chi-fung, the former secretary-general of Demosisto, to ten years' imprisonment for conspiracy to commit collusion with a foreign country or with external elements to endanger national security under Article 29 of the HKNSL, to which Wong had pleaded guilty. The charge concerned the period from 1 July 2020, the day after the HKNSL came into force, to 23 November 2020, the day of Wong's remand in other proceedings, and alleged a conspiracy with Nathan Law, by then in the United Kingdom, to request foreign sanctions, blockades or other hostile measures against the HKSAR or the People's Republic of China. *(See EXHIBIT E29)*

[3.1.2] The conduct relied upon for that period consisted of social-media posts, including the reposting of an online petition and of posts by Law, and commentaries in foreign media amplifying Law's advocacy abroad; Demosisto's earlier lobbying, testimony and campaigns had preceded the HKNSL and were treated by the court as context only. Judge TAM nonetheless held the offence to be of a grave nature, adopted a starting point of 13 years and, after credit for the plea, imposed the statutory minimum of ten years, finding that Wong and Law were the "masterminds" of the conspiracy and that their calls had facilitated foreign sanctions or at least created a real possibility of them. *(See EXHIBIT E29)*

[3.1.3] The charge had been brought almost five years after the period of the alleged offence, while Wong was serving the sentence of four years and eight months imposed in the Hong Kong 47 case, from which he was due for release on 7 January 2027. Judge TAM ordered that two months and two days of the new sentence run concurrently with the remainder of that sentence, with the result that Wong, in custody since November 2020, will not complete the new sentence until November 2036. *(See EXHIBIT E29)* It is alleged that, through this judgment, Judge TAM contributed to the imprisonment, for a further ten years, of a political activist for social-media posts and published commentary.